June 8, 2020

VIA ELECTRONIC DELIVERY

Honorable Michael Phillips
Secretary
State of New York Public Service Commission
Three Empire State Plaza
Albany, NY 12223-1350

Re: Case 19-G-0678 - Proceeding on Motion of the Commission to Investigate Denials of Service Requests by National Grid USA, The Brooklyn Union Gas Company d/b/a National Grid NY and KeySpan Gas East Corporation d/b/a National Grid

Dear Secretary Philips:

Please find attached a letter from 160 groups regarding National Grid's Natural Gas Long-Term Capacity Options for filing in the above referenced proceeding.

Sincerely,

/s/
Jessica Azulay
Executive Director
Alliance for a Green Economy

The Honorable Andrew M. Cuomo
Governor of New York State
NYS State Capitol Building
Albany, NY 12224

June 8, 2020

Re: Public Service Commission Case Number: 19-G-0678
Proceeding on Motion of the Commission to Investigate Denials of Service Requests by National Grid USA, The Brooklyn Union Gas Company d/b/a National Grid NY and KeySpan Gas East Corporation d/b/a National Grid.

Dear Governor Cuomo:

We write to thank your administration for rejecting the permit for the Williams Northeast Supply Enhancement (NESE) Project and to call on your administration to similarly reject National Grid's other proposals to bring more gas into New York City and Long Island. We urge your Department of Public Service to choose National Grid's "no-infrastructure" options for meeting new demand for heating, hot water, and cooking in downstate New York.

Last year, you rightfully stood up to National Grid when the company refused service to new gas customers in an attempt to bully New York into accepting the Williams NESE Project. We thank you for requiring National Grid to explore other options for meeting the long term needs of its customers and potential customers and for providing opportunities for the public to help choose among these options. We note that the agreement signed between your administration and National Grid requires the state to approve one of these options in June of this year.

National Grid has identified numerous options to bring more gas into its territory. These options are all inconsistent with the Climate Leadership and Community Protection Act (CLCPA), New York's landmark climate law! As the New York Department of Environmental Conservation (DEC) said when rejecting the Williams Pipeline, more gas "is inconsistent with the energy and climate policies, laws and goals of the State."

Instead, the State must approve the set of "no-infrastructure" solutions identified by National Grid, that would manage demand on its gas system with energy efficiency, demand response and heat pumps. This is the only option presented by National Grid that complies with state climate law. This option is more cost effective than the Williams NESE Project and would create over $3.5 billion in local investments through energy efficiency and heat pumps.

Again, as the DEC said when rejecting the Williams NESE Pipeline permit:

> ... in order to achieve the State's critical and ambitious climate change and clean energy policies, the State needs to continue its ongoing transition away from natural gas and other fossil fuels. While the Department recognizes that many building assets in the State currently rely on natural gas for heating and other energy uses, the continued long-term use of fossil fuels is inconsistent with the State's laws and objectives and with the actions necessary to prevent the most severe impacts from climate change. Therefore, the State must continue to support the ongoing transition to renewable and other clean sources of energy, as it works to ultimately eliminate all fossil fuel combustion sources that cannot be counterbalanced by guaranteed permanent carbon sequestration. Without appropriate alternatives or GHG mitigation measures, the Project could extend the amount of time that natural gas may be relied upon to produce energy, which could in turn delay, frustrate, or increase the cost of the necessary transition away from natural gas and other fossil fuels.[1]

National Grid's preferred alternative to the Williams NESE Project is the Iroquois Enhancement by Compression (ExC) Project and the expansion of their Greenpoint Liquefied Natural Gas (LNG) facility in Brooklyn. These false "solutions" would serve the same purpose as the Williams Pipeline: to bring more methane gas into New York, frustrating the much needed transition away from fossil fuels. Heating, hot water, and cooking services contribute to almost a third of New York's greenhouse gas emissions and account for more than 60% of the gas used in the state. We must electrify these services statewide using efficient technologies like heat pumps and induction stoves in order to plug into New York's growing renewable energy resources and eliminate this large source of greenhouse gasses.

Your administration has already started moving in this direction with the state fracking ban; the Westchester Clean Energy Action Plan, enacted in response to Consolidated Edison's 2019 gas moratorium; and the inclusion of heat pump targets and funding as part of New York's ambitious energy efficiency order, approved in January of this year. Requiring National Grid to pursue non-infrastrastructure options in lieu of more gas infrastructure is the next important and logical step in this process; allowing them to expand the Iroquois Pipeline and the LNG facility will derail progress.

The gas infrastructure options also pose a risk to public health and environmental justice communities, another violation of the CLCPA, which requires that projects not harm disadvantaged communities.

The gas options preferred by National Grid create real environmental harms. The expansion of compressor stations along the Iroquois pipeline would release toxins into the air, increase greenhouse gas emissions, and increase the risk of explosions and gas breaches, especially considering other nearby gas infrastructure. Further, the use of methane gas inside the home is being increasingly exposed as a health hazard, especially when it comes to gas cooking.The Rocky Mountain Institute, Physicians for Social Responsibility, Mothers Out Front, and Sierra Club recently published a paper on the dangerous

[1] NY Department of Environmental Conservation "Notice of Denial of Water Quality Certification Transcontinental Gas Pipe Line Company, LLC Northeast Supply Enhancement Project DEC ID: 2-9902-00109/00006 – Water Quality Certification" May 15, 2020. https://www.dec.ny.gov/docs/permits_ej_operations_pdf/nesewqcdenial05152020.pdf

levels of indoor air pollution caused by gas stoves. They found that cooking with gas can cause indoor air pollution so high that it exceeds the legal standards for outdoor air quality, and this can be a major contributor to childhood asthma.[2]

We call on your administration to both reject the fossil fuels that cause these harms and, at all times, fully enforce the equity and justice provisions of the CLCPA.

Finally, we call your attention to the massive public rejection of gas infrastructure, expressed in nearly 50,000 comments against the Williams NESE pipeline submitted to the DEC and nearly 8,000 comments submitted to the Public Service Commission against all of the gas options considered in National Grid's capacity report. To hear some of these New Yorkers firsthand, we encourage you to watch a video of the People's Hearing held last week, during which residents from all over the state testified against more fracked gas infrastructure and in favor of energy efficiency and renewable heating.

Thank you for your attention to this important matter.

Sincerely,

350.org
Richard Brooks
New York, NY

350Brooklyn
Sara Gronim, Co-leader
Brooklyn, NY

350NYC
Dorian Fulvio
New York, NY

AAUW Kingston NY
Susan Holland, Public Policy Chair
Kingston, NY

All Our Energy
George Povall, Executive Director
Point Lookout, NY

Alliance for a Green Economy
Andra Leimanis, Communications & Outreach Director
Syracuse, NY

[2] Brady Seals and Andee Krasner, Health Effects from Gas Stove Pollution, Rocky Mountain Institute, Physicians for Social Responsibility, Mothers Out Front, and Sierra Club, 2020 https://rmi.org/insight/gasstoves-pollution-health.

Bedford 2020
Midge Iorio, Executive Director
Katonah, NY

Big Reuse
Justin Green, Executive Director
Brooklyn, NY

Binghamton Regional Sustainability Coalition
Adam Flint, Director of Clean Energy Programs
Binghamton, NY

BK ROT
Ceci Pineda, Executive Director
Brooklyn, NY

Brighton High School Climate Club
Liam Smith, Co-President
Rochester, NY

Bronx Climate Justice North
Jennifer Scarlott, Coordinator
Bronx, NY

Brooklyn Lutherie Inc.
Chloe Swantner, Vice President
Brooklyn, NY

Broome Tioga Green Party
Rick Sprout, Chair
Binghamton, NY

Calhoun Sustainability Club
Maya Henning
New York, NY

Campaign for Renewable Energy
Sara Hess, Chair
Ithaca, NY

Catskill Mountainkeeper
Wes Gillingham, Associate Director
Livingston Manor, NY

Chemung County Mothers Out Front
Heather M. Stanton, Team Leader
Elmira, NY (also Horseheads, Chemung, Big Flats)

Church Women United in New York State
Mary Smith, Communications Chair
Rochester, NY

Citizen Action of New York
Bob Cohen, Policy Director
Albany, NY

Citizens for Local Power
Jessica Clegg, Coordinator
Kingston, NY

Citizens For Water
Joe Levine, Director
New York, NY

Citizens' Environmental Coalition
Barbara Warren, RN, MS, Executive Director
Cuddebackville, NY

Climate Change Awareness and Action
Peter Wirth, Organizer
Fayetteville, NY

CNY Solidarity Coalition
Dick Kornbluth & Peter McCarthy, Coordinating Committee
Syracuse, NY

CNY Solidarity Coalition Climate Justice Committee
Katherine Burns, Chairperson
Syracuse, NY

Co-op Power
Lynn Benander, President
Florence, MA

Coalition Against the Pilgrim Pipeine - NJ
Ken Dolsky, Co-founder and Organizer
Parsippany, NJ

Coalition Against the Rockaway Pipeline
Judith Canepa, Coordinator
New York, NY

Coalition for Outreach, Policy and Education (COPE)
Joseph Wilson, Co-Coordinator
Ithaca, NY

Coalition to Protect New York
Doug Couchon, Co-Founder
Elmira, NY

Community Advocates for a Sustainable Environment
Robert Connors, Co-Founder
Canaan, NY

Compressor Free Franklin
Donald Hebbard, President & Founding Member
Franklin, NY

Concerned Citizens of Lansing
Diane Beckwith
Landing, NY

Concerned Residents of Oxford
Dan Taylor, Co-Founder
Oxford, NY

Damascus Citizens for Sustainability
B. Arrindell, Director
Narrowsburg, NY

Diverso Energy
Jon Mesquita, President
Brooklyn, NY

Don't Gas the Meadowlands Coalition
Ken Dolsky, Organizer
Northern New Jersey

Drawdown NYC
Elihu Dietz, Co-Founder
New York, NY

Dryden Resource Awareness Coalition (DRAC)
Charles Geisler, Member
Ithaca, NY

Dutchess County Progressive Action Alliance, member of Let NY Vote Coalition
Maria Quackenbush, Co-Founder
Hyde Park, NY

Elmirans and Friends Against Fracking
Doug Couchon, Co-Founder
Elmira, NY

Energy Democracy Alliance
Patrick Robbins, Coordinator
Brooklyn, NY

Environmental Justice Ministry of First Unitarian Church
John Keevert, Chair
Rochester, NY

Environmental Justice Task Force of the WNY Peace Center
Charley Bowman, Chair
Buffalo, NY

Food & Water Action
Laura Shindell, Organizer
Brooklyn, NY

Fossil Free Tompkins
Irene Weiser, Coordinator
Ithaca, NY

Frack Action
Julia Walsh, Campaign Director
Kingston, NY

FrackBustersNY
Mary Finneran, Co-Founder
New York State

Friends of Bushwick Inlet Park
Katherine Conkling Thompson, Co-Chair
Brooklyn, NY

Gas Free Seneca
Yvonne Taylor, Vice President
Watkins Glen NY

Godwin-Ternbach Museum
Dr. Amy Winter
Flushing, NY

GoGreenNY
Alicia Dale Alexander, Founder
Ithaca, NY

Granny Peace Brigade, NYC
Nydia Leaf, Member
New York, NY

Grassroots Environmental Education
Patti Wood, Executive Director
Port Washington, NY

Green Education and Legal Fund
Mark Dunlea, Chair
Poestenkill, NY

Green Party of Nassau County
Joseph Naham, Chairperson
Long Beach, NY

Green Pathways Consulting
Judith A Karpova, Owner
Kerhonkson, NY

GreeningUSA
Diane Brandli , President
Liverpool, NY

HabitatMap
Michael Heimbinder, Executive Director
Brooklyn, NY

Halco
Hal Smith, CEO
Phelps, NY

Heat Smart Otsego
Bennett Sandler, Campaign Director
Fly Creek, NY

Heat/Cool Smart Brooklyn
Martha Sickles, Board Member
New York, NY

HeatSmart CNY
Lindsay Speer, Campaign Manager
Syracuse, NY

HeatSmart Tompkins
Brian Eden, Board Chair
Ithaca, NY

Hudson River Sloop Clearwater, Inc.
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Beacon, NY

Indian Point Safe Energy Coalition
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Cortlandt Manor, NY

Indivisible Harlem
Nan Faessler
New York City, NY

Interfaith Climate Justice Community of WNY
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Buffalo, NY

irREVERENT Films & Music
Laura Newman, Owner
Brooklyn NY

Jewish Climate Action Network NYC
Tamar Yanay, Steering Committee Member
New York, NY

Kamtech Solar
Ko Tanaka, Solar Analyst
Brooklyn, NY

Long Island Progressive Coalition
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Massapequa, NY

Metro NY Catholic Climate Movement
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New York, NY

Milford Doers/Residents of Crumhorn Mtn
Otto Butz, Founder
Maryland NY

Mothers Out Front - Westchester Rivertowns Team
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Sleepy Hollow, NY

Mothers Out Front Adirondacks/Keene
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Keene, NY

Mothers Out Front Dutchess County
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Mothers Out Front Westchester
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Nassau Hiking & Outdoor Club
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New Paltz Climate Action Coalition
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New York Climate Action Group
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New York Communities for Change
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New York Geothermal Energy Organization
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New York Youth Climate Leaders
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New Yorkers for Clean Power
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News from the Neighborhood
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Delmar, NY

North American Climate, Conservation and Environment (NACCE)
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Roosevelt, NY

North Bronx Racial Justice
Jennifer Scarlott, Coordinator
Bronx, NY

North Brooklyn Community Boathouse
Dewey Thompson, President
Brooklyn, NY

North Brooklyn Neighbors
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Brooklyn, NY

Nuclear Information and Resource Service (for a nuclear-free, carbon-free world)
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Takoma Park, MD

NY Climate Advocacy Project
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NY Renews
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NY Solar Energy Society
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NYC 2030 District
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NYC Grassroots Alliance
Jill McManus, Event Coordinator
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NYCD-16 Indivisible
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NYH2O
Buck Moorhead, Chair
New York, NY

NYPAN Environmental Committee
Cari Gardner, Chair
Athens, NY

NYPIRG
Elizabeth Moran, Environmental Policy Director
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Oblong Valley Indivisible
Bill Kish, Coordinator
Millerton, NY

Orange Residents Against Pilgrim Pipelines
Sandra Kissam, Chair
Newburgh, NY

Partnership for Policy Integrity
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Red Hook, NY

Peace Action NYS
Jim Anderson, President
Buffalo, NY

Peace Action of Staten Island
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Staten Island, NY

PAUSE - People of Albany United For Safe Energy
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People for a Healthy Environment
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Peoples Climate Movement - NY
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Property Rights and Pipeline Center
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PUSH Buffalo
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Ratepayer and Community Intervenors
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Renewable Energy Long Island
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Residents Allied for the Future of Tioga (RAFT)
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RETI Center
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Brooklyn, NY

Riverdale Jewish Earth Alliance
Elliott Rabin, Organizer
Bronx, NY

Riverkeeper
Paul Gallay, President
Ossining, NY

Rochester Peoples Climate Coalition (RPCC)
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Rochester Team, Mothers Out Front
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Rockaway Beach Civic Association
Jeremy Jones, Co-Vice President
Rockaway Beach, NY

Rockaway Women for Progress
Jean Belford, President & Co-Founder
Rockaway Beach, NY

Safe Energy Rights Group
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Sane Energy Project
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Sanford-Oquaga Area Concerned Citizens (S-OACC)
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Deposit, NY

Seneca Lake Guardian
Joseph Campbell, President
Watkins Glen, NY

ShaleshockCNY
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Syracuse, NY

Sheridan Hollow Alliance for Renewable Energy
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Albany NY

Sierra Club Atlantic Chapter
Roger Downs, Conservation Director
NY

Sister of Mercy
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Sisters of Charity Federation
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New York, NY

Sixth Street Community Center
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Solarize Albany
William Reinhardt, Director
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Solstice
Avni Pravin, Program Manager
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South Asian Fund For Education, Scholarship and Training (SAFEST)
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New York, NY

South Shore Audubon Society
Brien Weiner, President
New York, NY

Staten Island 4 Change
Staten Island 4 Change
Staten Island, NY

Stone Quarry House
Nancy Norton, President
Ithaca, NY

Stop NY Fracked Gas Pipeline
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Stop the Algonquin Pipeline Expansion
Susan Van Dolsen, Co-Founder
Rye, NY

StopCricketValley.org
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Sunrise NYC
Leila Kassiri
Brooklyn, NY

Sunrise/XR Poughkeepsie
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Poughkeepsie, NY

Sustainable McDonough
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Sustainable Tompkins, Inc.
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Ithaca, NY

Syracuse Cultural Workers
Andy Mager, Sales Manager & Social Movements Liaison
Syracuse, NY

Syracuse Peace Council
Michaela Czerkies, Organizer
Syracuse, NY

The Climate Reality Project New York State Coalition of Chapters
Cate Rogers, Co-Chair
East Hampton, NY

The Climate Reality Project: Capital Region, NY Chapter
Laura Faulk, Chapter Chair
Saratoga Springs, NY

The Strebel Planning Group
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Tompkins County Climate Protection Initiative
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Ithaca, NY

Tompkins County Environmental Management Council
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United for Action
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New York, NY

Urbecon LLC
Martha Sickles, Principal
New York, NY

UU Congregation of Binghamton, Green Sanctuary
Wes Ernsberger, Chair
Binghamton, NY

Veterans Green Jobs Initiative
Larry Menkes CSBA, CEO
Warminster, PA

WESPAC
Nada Khader, Executive Director
White Plains, NY

CC: Mr. John Rhodes, Chair of the Public Service Commission
Hon. Michelle L. Phillips, Secretary to the Public Service Commission